



Nurses Act 1969

1969 CHAPTER 47

An Act to amend the Nurses Act 1957 and the Nurses
(Scotland) Act 1951. [25th July 1969]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The following subsection shall be substituted for sub-section (1) of section 2 of the Nurses Act 1957 (duty of the Council to maintain the register and the roll of nurses):—

Registration and enrolment of mental nurses and nurses for the mentally subnormal.

“(1) It shall be the duty of the Council—

(a) to maintain, in accordance with rules in that behalf made by them, the register of nurses established in pursuance of the Nurses Registration Act, 1919, 1919 c. 94. which shall consist of—

(i) a general part containing the names of all nurses who satisfy the conditions of admission thereto ;

(ii) a part containing the names of nurses trained in the nursing and care of persons suffering from mental disorder other than severe subnormality or subnormality ;

(iii) a part containing the names of nurses trained in the nursing and care of persons suffering from severe subnormality or subnormality ;

(iv) a part containing the names of nurses trained in the nursing of sick children ; and

(v) such other parts as may be prescribed ;

1943 c. 17.

(b) to maintain, in accordance with rules in that behalf made by them and by the name of the roll of nurses, the roll established in pursuance of Part I of the Nurses Act, 1943, which shall consist of—

(i) a general part containing the names of all nurses who satisfy the conditions of admission thereto ;

(ii) a part containing the names of nurses trained in the nursing and care of persons suffering from mental disorder other than severe subnormality or subnormality ;

(iii) a part containing the names of nurses trained in the nursing and care of persons suffering from severe subnormality or subnormality ;

(iv) such other parts as may be prescribed.”

1957 c. 15.

(2) In section 27 of the Nurses Act 1957 (penalties for false assumption of title of registered or enrolled nurse, etc.), the following paragraph shall be substituted for paragraph (b) of subsection (1):—

“(b) being a person whose name is included in any part or parts of the register but not in another part, takes or uses any name, title, addition, description, uniform or badge, or otherwise does any act of any kind, implying that his name is included in that other part ; or ”

and the following paragraph shall be inserted after paragraph (a) of subsection (2):—

“(aa) being a person whose name is included in any part or parts of the roll but not in another part, takes or uses any name, title, addition, description, uniform or badge, or otherwise does any act of any kind implying that his name is included in that other part ; or ”

Constitution
of General
Nursing
Council for
England and
Wales.

2.—(1) Paragraph 1 of Schedule 1 to the Nurses Act 1957 (constitution of Council) shall be amended as follows:—

(a) in sub-paragraph (a) (elected members) for the word “eighteen” there shall be substituted the word “twenty-two” ;

(b) in sub-paragraph (b) (members appointed by Secretary of State) for the word “thirteen” there shall be substituted the word “fourteen” ;

(c) in sub-paragraph (c) (members appointed by Secretary of State for Education and Science) for the word “three” there shall be substituted the word “two” ;

(d) at the end of the paragraph there shall be added the following sub-paragraphs:—

“(e) one person, who shall be a certified midwife within the meaning of the Midwives Act 1951 engaged in the teaching of obstetrics to persons undergoing the prescribed training for admission to the register, appointed by the Central Midwives Board after consultation with persons and bodies having special knowledge and experience of the work of midwives so engaged; and

(f) one person, who shall be both a registered nurse and a health visitor engaged in or concerned with the teaching of persons undergoing the prescribed training for admission to the register or to the roll, appointed by the Council for the Training of Health Visitors after consultation with persons and bodies having special knowledge and experience of the work of registered nurses and health visitors so engaged.”

(2) For paragraph 2(1) of that Schedule there shall be substituted the following:—

“(1) Of the elected members of the Council—

- (a) fifteen, who shall be registered general nurses, shall be elected by persons (hereinafter referred to as ‘the general electors’) who, on the prescribed date, are registered general nurses or nurses registered in any part of the register prescribed under section 2(1)(a)(v) of this Act;
- (b) three shall be registered mental nurses elected by persons who, on the prescribed date, are registered mental nurses;
- (c) one shall be a registered nurse for the mentally subnormal elected by persons who, on the prescribed date, are registered nurses for the mentally subnormal;
- (d) one shall be a registered sick children’s nurse elected by persons who, on the prescribed date, are registered sick children’s nurses;
- (e) one shall be an enrolled general nurse, who shall be elected by persons who, on the prescribed date, are enrolled general nurses or nurses enrolled in any part of the roll prescribed under section 2(1)(b)(iv) of this Act; and
- (f) one shall be an enrolled mental nurse or an enrolled nurse for the mentally subnormal, who shall

be elected by persons who, on the prescribed date, are enrolled mental nurses or enrolled nurses for the mentally subnormal."

(3) For paragraph 2(2) of that Schedule there shall be substituted the following:—

"(2)(a) For the purposes of the election of the fifteen nurses mentioned in head (a) of the foregoing sub-paragraph, England and Wales shall be divided into fifteen areas determined by the Secretary of State and one of those nurses shall be elected for each area.

(b) Each of the nurses elected under the foregoing sub-paragraph shall, on the date fixed for the purpose of the election as the last date for the receipt of nomination papers, be engaged in work for which the employment of a registered nurse or an enrolled nurse, as the case may be, is requisite or for which a registered nurse or an enrolled nurse, as the case may be, is commonly employed; and, in the case of the fifteen nurses elected under head (a) of the foregoing sub-paragraph, shall on the said date be so engaged in the area for which he is elected."

(4) For paragraph 3 of that Schedule there shall be substituted the following:—

"3. Of the members of the Council appointed under paragraph 1(b) of this Schedule—

(a) two shall be registered medical practitioners engaged from time to time in teaching persons undergoing training prescribed for admission to the general part of the register, appointed by the Secretary of State after consultation with persons and bodies having special knowledge and experience of the work of medical practitioners so engaged;

(b) one shall be a registered medical practitioner engaged from time to time in teaching persons undergoing training prescribed for admission to a part of the register containing the names of nurses trained in the nursing and care of persons suffering from mental disorder, appointed by the Secretary of State after consultation with persons and bodies having special knowledge and experience of the work of medical practitioners so engaged;

(c) two shall be registered nurses engaged in training persons undergoing training prescribed for admission to the general part of the roll, appointed by

the Secretary of State after consultation with persons and bodies having special knowledge and experience of the work of nurses so engaged ;

- (d) two shall be registered nurses engaged in training persons undergoing training prescribed for admission to a part of the roll containing the names of nurses trained in the nursing and care of persons suffering from mental disorder, appointed by the Secretary of State after consultation with persons and bodies having special knowledge and experience of the work of nurses so engaged ;
- (e) one shall be a registered nurse employed in services provided under section 25 of the National Health Service Act 1946 and engaged in teaching persons undergoing the prescribed training for admission to the register or to the roll, appointed by the Secretary of State after consultation with persons and bodies having special knowledge and experience in the work of nurses so employed ; and
- (f) two shall be persons engaged in the control and management of hospitals, appointed by the Secretary of State after consultation with persons and bodies having special knowledge and experience of such control and management."

(5) In paragraph 6(1) of that Schedule for the words from "if the member was appointed" to "as the case may be" there shall be substituted the words "if he was an appointed member, be filled by a person appointed by the Secretary of State or body that appointed him".

3.—(1) Paragraph 1 of Schedule 1 to the Nurses (Scotland) Constitution Act 1951 (constitution of the General Nursing Council for Scotland) shall be amended as follows:—

- (a) in sub-paragraph (a) (elected members) for the word "thirteen" there shall be substituted the word "fourteen";
- (b) in sub-paragraph (b) (members appointed by the Secretary of State) for the word "eleven" there shall be substituted the word "twelve".

(2) For paragraph 2 of that Schedule there shall be substituted the following:—

"2.—(1) Of the elected members of the Council—

- (a) six, who shall be registered general nurses, shall be elected by registered general nurses or nurses registered in any part of the register prescribed under section 2(2)(f) of this Act ;

- (b) two, who shall be registered mental nurses, shall be elected by nurses so registered, and one of the persons so elected shall be a man and one a woman ;
- (c) one, who shall be a registered nurse for mental defectives, shall be elected by nurses so registered ;
- (d) one, who shall be a registered sick children's nurse, shall be elected by nurses so registered ;
- (e) two, who shall be persons holding certificates given by virtue of section 6(1)(f) of this Act (which provides for the giving of certificates to persons trained in the teaching of nursing), shall be elected by such persons ;
- (f) two, who shall be enrolled nurses, shall be elected by enrolled nurses.

(2) Each of the nurses elected under the foregoing subparagraph shall, on the date fixed for the purpose of the election as the last date for the receipt of nomination papers, be engaged in Scotland in work for which the employment of a registered nurse or an enrolled nurse, as the case may be, is requisite or for which a registered nurse or an enrolled nurse, as the case may be, is commonly employed."

The Mental
Nurses
Committees.
1957 c. 15.

4.—(1) The following shall be substituted for subsections (1) and (2) of section 18 of the Nurses Act 1957:—

"(1) The Council shall appoint a Mental Nurses Committee consisting of—

- (a) such number of persons, being members of the Council, as may be prescribed ; and
- (b) such persons other than members of the Council, not exceeding four in number, as may be nominated by the Secretary of State, after consultation with the Council, for appointment to the Committee ;

a majority of whom shall be nurses who are registered mental nurses or registered nurses for the mentally sub-normal.

(2) The term of office of the members of the Mental Nurses Committee shall be such as may be prescribed, and rules made by the Council may provide for the selection of a chairman of the Committee, the summoning of meetings and any matter relating to its proceedings."

(2) In subsection (3) of that section (matters to be referred to the Committee) the following paragraphs shall be substituted for paragraphs (a) and (b)—

"(a) any matter which wholly or mainly concerns registered or enrolled mental nurses or registered or enrolled nurses for the mentally subnormal (other than a question whether a person shall be registered or enrolled or shall be removed from or restored to the register or the roll or a matter arising out of any such question); and

(b) any matter relating to the training of persons for admission to a part of the register or roll containing the names of nurses trained in the nursing and care of persons suffering from mental disorder;"

(3) The following shall be substituted for subsections (1) and (3) of section 5 of the Nurses (Scotland) Act 1951:—

1951 c. 55

"(1) The Council shall appoint a Mental Nurses Committee consisting of—

(a) such number of persons, being members of the Council, as may be prescribed; and

(b) such persons other than members of the Council, not exceeding four in number, as may be nominated by the Secretary of State, after consultation with the Council, for appointment to the Committee;

a majority of whom shall be nurses who are either registered mental nurses or registered nurses for mental defectives.

(3) The term of office of the members of the Mental Nurses Committee shall be as may be prescribed."

5. The Enrolled Nurses Committee established by section 3 of the Nurses Act 1943 and the Enrolled Nurses Committee established by section 3 of the Nurses (Scotland) Act 1943 (which were so named by section 1(1) of the Nurses (Amendment) Act 1961) shall cease to exist on the coming into operation of section 2 and section 3 of this Act respectively.

Abolition of
Enrolled
Nurses
Committees.
1943 c. 17.
1943 c. 33.
1961 c. 14.

6. An area nurse-training committee or (in Scotland) a regional nurse-training committee may (without an order under Schedule 2 to the Nurses Act 1957 or Schedule 4 to the Nurses (Scotland) Act 1951) make to its members and the members of any sub-committee of that committee such payments in respect of any loss of earnings they would otherwise have made or any additional expenses (including travelling and subsistence expenses) to which they would not otherwise have been subject, being loss or expenses necessarily suffered or incurred by them for the purpose of enabling them to perform duties as members of the committee or sub-committee, as the case may be, as the Secretary of State may, with the approval of the Minister for the Civil Service, from time to time determine.

Allowances to
members of
nurse-training
committee or
sub-committee
thereof.
1957 c. 15.

Fees. 7.—(1) Rules made under section 3(1) of the Nurses Act 1957 or under section 6(1) of the Nurses (Scotland) Act 1951 may contain provisions requiring, as a condition of the recognition of any person as a person who has undergone the prescribed training, the payment by him to the Council, within such period after beginning the training as may be prescribed, of such fee as the Council may, with the approval of the Secretary of State, from time to time determine.

1957 c. 15.
1951 c. 55.

(2) A fee may be prescribed under section 4(1) of the Nurses Act 1957 or under section 7(1) of the Nurses (Scotland) Act 1951 (registration of nurses trained abroad) in respect of an application to be registered under that section as well as in respect of such a registration; and accordingly in each of those subsections the words “on an application made in the prescribed manner and accompanied by such fee, if any, as may be prescribed” shall be inserted between the words “who” and “proves”, and the words “on making an application in the prescribed manner and” shall be omitted.

Abolition of duty to publish periodical lists of changes in register, etc. 8. Section 9(2) of the Nurses Act 1957 and section 8(2) of the Nurses (Scotland) Act 1951 (duty of Council to publish lists of changes in the register, the roll or the list) shall cease to have effect.

Interpretation. 9.—(1) Section 33 of the Nurses Act 1957 shall apply for the interpretation of this Act in its application to England and Wales, and section 34 of the Nurses (Scotland) Act 1951 shall apply for the interpretation of this Act in its application to Scotland.

(2) References in this Act to any enactment are references thereto as amended by any other enactment, including, except where the context otherwise requires, this Act.

Minor and consequential amendments and repeals. 10.—(1) The enactments mentioned in Schedule 1 to this Act shall have effect subject to the minor and consequential amendments set out in that Schedule.

(2) The enactments specified in Schedule 2 to this Act are hereby repealed to the extent specified in the third column of that Schedule.

Commence-ment, transitional provisions, citation and extent. 11.—(1) The provisions of this Act other than sections 2 to 4 shall come into force one month after the passing of this Act.

(2) Section 2 and subsections (1) and (2) of section 4 of this Act shall not come into force until 22nd September 1970, but without prejudice to the validity of any scheme prescribed, election held or appointment made in pursuance of section 2 before that date.

(3) Sections 3 and 4(3) of this Act shall not come into force until 1st December 1970, but without prejudice to the validity of any scheme prescribed, election held or appointment made in pursuance of section 3 before that date.

(4) Notwithstanding anything in paragraphs 5 and 6 of Schedule 1 to the Nurses Act 1957, the appointed members of 1957 c. 15. the Council shall cease to hold office on 21st September 1970 and—

(a) if a casual vacancy among the members of the Council occurs in the six months preceding 22nd September 1970 it need not be filled ; and

(b) the members of the Council appointed to take office on 22nd September 1970 shall hold office for three years.

(5) The first additional member of the General Nursing Council for Scotland to be appointed by the Secretary of State by virtue of section 3(1)(b) of this Act shall take office on 1st December 1970 and shall hold office for three years.

(6) This Act may be cited as the Nurses Act 1969 ; and—

(a) this Act and the Nurses Acts 1957 to 1967 may be cited together as the Nurses Acts 1957 to 1969 ; and

(b) this Act and the Nurses (Scotland) Acts 1951 to 1967 may be cited together as the Nurses (Scotland) Acts 1951 to 1969.

(7) Sections 1 and 2 of this Act do not extend to Scotland and section 3 of this Act extends to Scotland only.

(8) This Act does not extend to Northern Ireland.

SCHEDULES

Section 10(1).

SCHEDULE 1

MINOR AND CONSEQUENTIAL AMENDMENTS

1951 c. 55.

The Nurses (Scotland) Act 1951

1. In section 2(4) and section 3(2) of the Nurses (Scotland) Act 1951, for the word "evidence" there shall be substituted the words "sufficient evidence" in each case.

2. In section 11(3) of that Act, for the words "and Third Schedules" there shall be substituted the word "Schedule".

3. In section 12 of that Act, the following paragraph shall be substituted for paragraph (b) of subsection (3):—

"(b) being a person whose name is included in any part or parts of the register but not in another part, takes or uses any name, title, addition, description, uniform or badge, or otherwise does any act of any kind, implying that his name is included in that other part ;".

4. In section 15 of that Act for the words "either of the said Committees" there shall be substituted the words "of the said Committee".

5. In section 34 of that Act the following definition shall be inserted at the appropriate place :—

"registered general nurse" means a nurse whose name is included in the general part of the register.

1957 c. 15.

The Nurses Act 1957

6. In section 2(2) of the Nurses Act 1957, after the words "a part of the register" there shall be inserted the words "or the roll".

7. In section 7(4) of that Act for the words "the appropriate authority" there shall be substituted the words "the Council".

8. In section 8 of that Act—

(a) in subsection (1), after the words "the register", in each place where they occur, there shall be inserted the words "or roll" ;

(b) in subsection (2), for the words preceding "and no such request" there shall be substituted the words "No request under the foregoing subsection shall be made by the Council with respect to any part of the register or roll containing the names of nurses trained in the nursing and care of persons suffering from mental disorder of any description unless the Council are satisfied that means exist whereby members of the public can readily ascertain whether a registered or enrolled nurse has been so trained" and

(c) at the end of subsection (3) there shall be added the words "or the roll".

SCH. 1

9. In section 31 of that Act, for the words "the part of the register" in the first place where they occur there shall be substituted the words "any part of the register or the roll", after the words "mental disorder" there shall be inserted the words "of any description", and for the words "the First and the Third Schedules" there shall be substituted the words "the First Schedule".

10. In section 33(1) of that Act, in the definition of "registered mental nurse", after the word "disorder" there shall be added the words "other than severe subnormality or subnormality", and the following definitions shall be inserted at the appropriate points:—

"enrolled general nurse" means a nurse whose name is included in the general part of the roll ;

"enrolled mental nurse" means a nurse whose name is included in the part of the roll containing the names of nurses trained in the nursing and care of persons suffering from mental disorder other than severe subnormality or subnormality ;

"enrolled nurse for the mentally subnormal" means a nurse whose name is included in the part of the roll containing the names of nurses trained in the nursing and care of persons suffering from severe subnormality or subnormality ;

"registered general nurse" means a nurse whose name is included in the general part of the register.

"registered nurse for the mentally subnormal" means a nurse whose name is included in the part of the register containing the names of nurses trained in the nursing and care of persons suffering from severe subnormality or subnormality ;

"severe subnormality" and "subnormality" have the same meanings respectively as in the Mental Health Act 1959. 1959 c. 72.

11. In section 33(3) of that Act, after the words "the register", in the first place where they occur, there shall be inserted the words "the roll", and after the words "a part of the register" there shall be inserted the words "a part of the roll".

The Nurses (Amendment) Act 1961

1961 c. 14.

12. In section 4 of the Nurses (Amendment) Act 1961, for the words from the beginning to "occurs" there shall be substituted the words "In paragraph 4 of Schedule 1 to the Act of 1957 for the word 'fourteen'".

13. In section 6 of that Act—

(a) the words "by the Minister of Health or, as the case may be, the Secretary of State" shall be omitted ;

(b) for the words "or of his being engaged in the teaching of any subject" there shall be substituted the words "or of his being engaged in or concerned with any kind of teaching or training" ; and

(c) for the words "the Minister or, as the case may be, the Secretary of State" there shall be substituted the words "the Secretary of State or body that appointed him".

1964 c. 44.

The Nurses Act 1964

14. In section 3 of the Nurses Act 1964, in the definition of "the roll", there shall be added at the end the words "and includes, unless the context otherwise requires, a part of the roll."

Section 10(2).

SCHEDULE 2

ENACTMENTS REPEALED

Chapter	Short Title	Extent of Repeal
14 & 15 Geo. 6. c. 55.	The Nurses (Scotland) Act 1951.	Section 4. In section 7(1) the words "on making an application in the prescribed manner and". Section 8(2). In section 10 the words "or by the Enrolled Nurses Committee, as the case may be,". In section 15 the words "and to the members of the Enrolled Nurses Committee". In section 33(2) the words "or paragraph 2 of the Third Schedule". Schedules 2 and 3.
5 & 6 Eliz. 2. c. 15.	The Nurses Act 1957.	In Schedule 4, paragraph 2(c). In section 4(1) the words "on making an application in the prescribed manner and". In section 7, paragraph (b) of subsection (5), and the word "and" preceding that paragraph. Section 9(2). Section 19. In Schedule 2, paragraph 2(c). Schedules 3 and 4.
7 & 8 Eliz. 2. c. 72.	The Mental Health Act 1959.	In Schedule 7, the entries relating to sections 2, 8 and 18 of and Schedules 1 and 3 to the Nurses Act 1957.
8 & 9 Eliz. 2. c. 61.	The Mental Health (Scotland) Act 1960.	In Schedule 4, the entry relating to Schedule 3 to the Nurses (Scotland) Act 1951.
9 & 10 Eliz. 2. c. 14.	The Nurses (Amendment) Act 1961.	In section 1, in subsection (1) the words from "and the Assistant Nurses Committee" to the end of the subsection, and in subsection (2) the words "the Assistant Nurses Committee" and the words "the Enrolled Nurses Committee". In section 4, subsections (2) and (3).

SCH. 2

Chapter	Short Title	Extent of Repeal
9 & 10 Eliz. 2. c. 14.— <i>cont.</i>	The Nurses (Amendment) Act 1961.— <i>cont.</i>	In section 6, the words “by the Minister of Health or, as the case may be, the Secretary of State”. Section 7(2)(b) and (c). In Schedule 1, paragraphs 1, 3, 4, 5, 6, 8, 9, 11, 14 and 16 and, in paragraph 13 and paragraph 15, the words from the beginning to “papers; and”.